FSCA
Financial Sector Conduct Authority

FITNESS AND PROPRIETY OF KEY INDIVIDUALS

FSP Number	
Applicant Name	

Instructions and notes:

1. Form FSP 4D must be completed by all key individuals of an applicant.
2. A passport number will only be accepted if the person completing the form is not a South African Citizen.
3. Race must only be indicated if the person completing the form is a South African Citizen.
4. A certified copy of the key individual's identification document (if he/she is a South African citizen) or passport (if he/she is not a South African Citizen) must accompany the application.
5. Any change to the information provided in this form must be reported to the Authority, in writing, within 15 days after the change has taken place.

1. Personal Details of key individual

Important Note:

(a) The Authority will liaise with the key individual regarding all matters concerning the key individual, and its approval, including the maintenance of its approval, in the event that approval is granted,–
(i) via electronic mail using the e-mail address of the key individual recorded hereunder; or
(ii) via the designated contact person of the applicant.

(b) Any requirement in a financial sector law that any notice or information must be provided to the key individual, will be regarded as effective service of such notice or information if it was submitted to the key individual in accordance with paragraph (a).

Provide the following information:

Title			
Full Names			
Surname			
Previous Surname (If applicable)			
Date of Birth			
Identity / Passport Number *(Passport no. must only be provided if applicant is not a South African citizen)*			
Nationality			
Country of residence			
Gender	**Male** ☐		**Female** ☐
Race	**Black**	☐	
	White	☐	
	Coloured	☐	
	Indian	☐	
	Asian	☐	
	Other	☐ **Please specify:**	
Physical address			

Postal Code	
Postal address	
Telephone Number	
Mobile Phone Number	
E-mail address	
Date of appointment to current position	

2. Role of Key Individual in applicant's business

Indicate what best describes the key individual's role in the applicant's / FSP's business.

Director	Member	Trustee	Partner	Manager	Secretary General	Other
☐	☐	☐	☐	☐	☐	☐

If "other", please specify	

3. Category of Financial Services

Indicate the category of financial services in respect of which the applicant seeks approval.

Category I	☐
Category II	☐
Category IIA	☐
Category III	☐
Category IV	☐

4. Class of business

Indicate the class of business in respect of the category of financial service the key individual seeks to manage or oversee.
(Note: *This section does not apply to a person seeking to be approved as a key individual to manage or oversee the activities of the FSP relating to the rendering of financial services in respect of crypto assets only. See question 5 for the management and oversight of crypto assets.)*

Class of business		Category I	Category II	Category IIA	Category III	Category IV
Short-term Insurance: Personal Lines	☐	☐	☐	☐	☐	☐
Short-term Insurance: Commercial Lines	☐	☐	☐	☐	☐	☐
Long-term Insurance	☐	☐	☐	☐	☐	☐
Pension Fund Benefits	☐	☐	☐	☐	☐	☐
Short-term and Long-term Deposits	☐	☐	☐	☐	☐	☐
Structured Deposits	☐	☐	☐	☐	☐	☐
Investments	☐	☐	☐	☐	☐	☐
Forex Investments	☐	☐	☐	☐	☐	☐
Health Services Benefits	☐	☐	☐	☐	☐	☐

5. Crypto Assets

Indicate whether the key individual will manage or oversee, either alone or together with other so responsible persons, the activities of the FSP relating to the rendering of any financial services in respect of crypto assets.

Yes ☐ **No** ☐

6. Honesty, integrity and good standing

Answer all the questions below. If the answer to any of the questions is YES, provide a full explanation and all information in a separate annexure and attach to the application form.

Questions

	Has the applicant ever- *(The reference to applicant in this section refers to the person seeking approval as a key individual)*	Yes	No
1.	been found guilty in any criminal proceedings or liable in any civil proceedings by a court under any law in any jurisdiction of- (a) an offence under a law relating to the regulation or supervision of a financial institution as defined in the Financial Institutions (Protection of Funds) Act, 2001 (Act No. 28 of 2001) or a corresponding offence under the law of a foreign country; (b) theft, fraud, forgery, uttering a forged document, perjury or an offence involving dishonesty, breach of fiduciary duty, dishonourable or unprofessional conduct; or (c) an offence under the Prevention of Corruption Act, 1958 (Act No. 6 of 1958), the Corruption Act, 1992 (Act No. 94 of 1992) or Parts 1 to 4, or section 17, 20 or 21, of the Prevention and Combating of Corrupt Activities Act, 2004 (Act No. 12 of 2004), or a corresponding offence under the law of a foreign country?	☐	☐
2.	been convicted of any other offence committed after the Constitution of the Republic of South Africa, 1996, took effect, where the penalty imposed for the offence was a significant fine?	☐	☐
3.	accepted civil liability for, or has been the subject of a civil judgment in respect of, theft, fraud, forgery, uttering a forged document, perjury or an any conduct involving dishonesty, breach of fiduciary duty, misrepresentation, or negligent, dishonourable and unprofessional conduct?	☐	☐
4.	been the subject of frequent or material preventative, remedial or enforcement actions by the Authority or a regulatory authority?	☐	☐
5.	been removed from an office of trust for theft, fraud, forgery, uttering a forged document, misrepresentation, dishonesty, breach of fiduciary duty or business conduct?	☐	☐
6.	breached a fiduciary duty?	☐	☐
7.	been suspended, dismissed or disqualified from acting as a director, managing executive, public officer, auditor or statutory actuary (or his or her alternate) under any law or any action to achieve one of the aforementioned outcomes has been instituted against the person?	☐	☐
8.	been refused a registration, approval, authorisation or licence to carry out a trade, business or profession, or has had that registration, approval, authorisation or licence suspended, revoked, withdrawn or terminated by a regulatory authority?	☐	☐
9.	been denied registration or membership of any professional body or has had that registration or membership revoked, withdrawn or terminated by a professional body because of matters relating to honesty, integrity, or business conduct?	☐	☐
10.	been disciplined, reprimanded, disqualified, or removed in relation to matters relating to honesty, integrity, incompetence or business conduct by a- (a) professional body; or (b) regulatory authority, or has any action to achieve one of the aforementioned outcomes been instituted against the applicant?	☐	☐
11.	knowingly been untruthful or provided false or misleading information to, or been uncooperative in any dealings with, the Authority or a regulatory authority?	☐	☐
12.	demonstrated a lack of readiness and willingness to comply with legal, regulatory or professional requirements and standards?	☐	☐
13.	been found to be not fit and proper by the Authority or a regulatory authority in any previous assessments of fitness and propriety?	☐	☐
14.	been involved or is the applicant involved as a director, trustee, member partner, controlling shareholder or managing executive, or is the applicant concerned in the management, of a business that has been- (a) the subject of any matter referred to in questions 1 to 13 above, or (b) placed in liquidation or business rescue; while the applicant has been connected with that organisation?	☐	☐
15.	failed to disclose any information required to be disclosed in terms of the Act?	☐	☐
16.	been prohibited, by the Authority or any other regulatory body or authority from operating in the financial services industry?	☐	☐
17.	been involved with an entity which has been censured, disciplined, suspended or refused membership or registration by a stock exchange, futures exchange, other market or regulatory body or authority?	☐	☐

18.	knowingly or negligently aided or abetted other persons in the breaching of any laws, regulations, exchange rules and/or codes of conduct?	☐	☐
19.	been the subject of any investigation or disciplinary proceedings by any regulatory authority (whether in the Republic or elsewhere), exchange, professional body, government body or agency?	☐	☐
20.	been or is its estate sequestrated or liquidated, either voluntarily or involuntarily?	☐	☐
21.	been or currently is subject to any pending proceedings that may lead to a conviction of any offence or finding of any liability under any law in any jurisdiction?	☐	☐
22.	been or currently is subject to any investigation or proceedings or pending proceedings or is the applicant aware of any investigations or proceedings that may commence?	☐	☐
23.	been or currently is subject to any other proceedings that may result in any matter referred to in question 1 to 22?	☐	☐

7. General Disclosure Question

Do you have any additional information, which should be brought to the Authority's attention that may have an impact on the evaluation by the Authority of your honesty, integrity or good standing or that may impact on your ability to obtain or maintain an approval to act as a key individual?

[If the answer to the questions is YES, a full explanation and all relevant information must be provided in a separate annexure.]

Yes ☐ No ☐

8. Qualifications

Instructions and notes:

1. *Please refer to the List of Recognised Qualifications to determine whether the qualifications listed under this section are recognised. If the qualifications are not recognised you must, **prior** to submitting this application, apply in the prescribed form and manner to the Authority for recognition of the qualification.*
2. *If the qualification is recognised, indicate under 'Qualification Code' in column three of the Table the qualification Code as reflected on the List of Recognised Qualifications.*
3. *Attach certified copies of the qualifications.*

Provide the following information:

No	Qualification code	Qualification Type	Year obtained

9. Regulatory Examinations

Indicate which of the following regulatory examinations have been completed.

RE 1 ☐	**RE 3** ☐
RE 4 ☐	**RE 5** ☐

10. Class of Business Training

Indicate the class of business training that has been completed and attach certified copies of the certificates.

Class of business	Training completed
Short-term Insurance: Personal Lines	☐
Short-term Insurance: Commercial Lines	☐
Long-term Insurance	☐

Pension Fund Benefits	☐
Short-term and Long-term Deposits	☐
Structured Deposits	☐
Investments	☐
Forex Investments	☐
Health Services Benefits	☐

11. Experience

Instructions and notes:

1. *All positions held since inception of the person's career must be listed hereunder.*
2. *Full details of the person's responsibilities/functions for every position held in the* ***last five years*** *and on which the person relies to demonstrate compliance with the experience requirements must be provided in a separate annexure.*
3. *Attach a copy of the person's CV.*

11.1 Provide the following information regarding the person's work experience:

No	Date of Employment (dd/mm/yy – dd/mm/yy)	Employer	Position Held

11.2. Provide-

(a) reference letters from appropriate senior officials that confirm the particular experience obtained by the person and which experience it relies on for purposes of the approval sought . Reference letters must be provided for all experience on which the person relies to demonstrate compliance with the relevant experience requirement; and

(b) the following information:

No.	Name of Person providing reference	Company Employed	Designation

11.3. Indicate the person's experience in the management or oversight of the rendering of particular financial services in respect of the particular Category in terms of which approval is sought.

[**Important note:** *Only current experience must be reflected and not experience that has lapsed.*]

Category of Financial Services		Months Experience	
		Intermediary Services	**Advice**
Category I	☐		
Category II	☐		
Category IIA	☐		

Category III	☐	
Category IV	☐	

12. General Skills and Knowledge Requirement

Demonstrate whether the applicant has adequate, appropriate and relevant skills, knowledge and expertise (general competence requirement) to perform the function as a key individual in respect of crypto assets as required in terms of the fit and proper requirements determined under section 6A of the Act.
(Note: *This section must only be completed if the answer to question 5 is yes.)*

13. Operational Ability of Key Individuals

Provide the following information:

No.	Question	Yes	No
1.	Are you able to maintain the operational ability to fulfil the responsibilities imposed by the Act?	☐	☐
2.	Are you permanently employed by the FSP in respect of which approval is sought?	☐	☐
3.	Are you approved as a key individual of more than one FSP or juristic representative	☐	☐
4.	Are you appointed as a representative of an FSP other than the FSP in respect of which this application is sought?	☐	☐
5.	If the answer to question 3 and/or 4 is yes, please indicate whether the FSPs are aware that you – (a) are approved as a key individual or seek approval as a key individual of more than one FSP or juristic representative; and/or (b) are appointed or seek appointment as a representative of another FSP.	☐	☐
6.	If the answer to question 3 and/or 4 is yes, provide a matrix reflecting the- (a) number of FSPs per category; (b) juristic representatives per Category of FSP; (c) number of representatives per Category of FSP; and (d) number of business premises, business units and branches per province (including internationally) and per FSP and representative referred to in (a), (b) and (c), that you manage or oversee and that you intend to manage or oversee.		
7.	If the answer to question 2 is no or the answer to question 3 or 4 is yes, please demonstrate to the Authority that you have the operational ability to fulfil your functions.		
8.	Confirmation signed by both the FSP in respect of which approval is sought and the person seeking approval as key individual that he/she has the ability, capacity and required decision making powers to actively and effectively manage or oversee the activities of the FSP relating to the rendering of financial services.		

14. Representative

Indicate whether the key individual will also be appointed as a representative of the applicant in respect of which approval is sought.
If yes, a separate form FSP 5 must also be attached.

Yes ☐ **No** ☐

15. Consent

I, …….. (full name of applicant)

Identity / passport number ……. hereby authorise the **Authority**, and its duly authorised verification agent, to request or confirm any personal information as well as any other information that I have provided in support of the application to any personal data holders (including but not limited to the South African Police Services, the Government of the RSA, industry bodies and associations, employers and any educational, training, credit bureau and fraud prevention organisations) for the purpose of verifying my personal credentials and records, as well as other information necessary for purposes of the application.

Credential verification types include, but are not limited to, educational qualifications, professional membership, employment history, employment references including industry employment registers, consumer credit, criminal records, drivers' licence, and fraud prevention checks.

I authorise the personal data holders (including but not limited to the aforesaid institutions) to furnish information regarding the credentials, whether claimed or not, to the **Authority** and it's duly authorised verification agent. I unconditionally indemnify the **Authority**, its verification agent and the personal data holders against any liability that may result from furnishing information in this regard.

……..	……..	…….
Name	**Signature**	**Date**